

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAUN TINDAL,

Plaintiff,

-against-

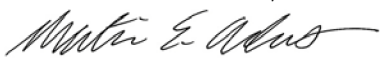
THE CITY OF NEW YORK; NYPD P.O. REGINALD SMITH;
NYPD L.T. DUSTIN EDWARDS; NYPD SGT CREER; NYPD
P.O. JOHN/JANE DOES # 1-10; WARDEN JOHN/JANE DOE #
1; SUPERVISOR C.O. JOHN/JANE DOE # 1-2; and C.O.
JOHN DOES # 1-10; the individual defendant(s) sued
individually and in their official capacities,

Defendants.

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YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
OCTOBER 9, 2019


MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONING LLP
Attorney for Plaintiffs
65 Broadway 1603
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

WARDEN JOHN/JANE DOE # 1;
SUPERVISOR C.O. JOHN/JANE DOE # 1-
2; and C.O. JOHN DOES # 1-10
OBCC 1600 Hazen Street, E Elmhurst
NY 11370

NYPD P.O. REGINALD SMITH, NYPD LT DUSTIN
EDWARDS, SGT CREER,
NYPD P.O. JOHN/JANE DOES # 1-10
81st Precinct, 30 Ralph Avenue
Brooklyn, NY, 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAUN TINDAL,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No: _____

THE CITY OF NEW YORK; NYPD P.O. REGINALD SMITH; NYPD L.T. DUSTIN EDWARDS; NYPD SGT CREER; NYPD P.O. JOHN/JANE DOES # 1-10; WARDEN JOHN/JANE DOE # 1; SUPERVISOR C.O. JOHN/JANE DOE # 1-2; and C.O. JOHN DOES # 1-10; the individual defendant(s) sued individually and in their official capacities,

Basis of Venue:

Location of incident:

Kings County

Jury Trial Demanded

Defendants.

----- X

The Plaintiff, SHAUN TINDAL, by and through counsel Adams & Commissiong LLP, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of his rights secured by the laws of the State of New York; New York State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that arose on or about February 1, 2017, to June 28, 2017. During the incident, the City of New York, and members of the New York

City Police Department ("NYPD") and New York City Department of Corrections, ("NYCDOC") subjected plaintiff to, among other things, unlawful search and seizure, false arrest and imprisonment, excessive force, assault and battery, malicious prosecution, failure to intervene, cruel and unusual punishment, inhumane conditions of confinement and implementation and continuation of an unlawful municipal policy, practice, and custom.

2. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

3. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County.

4. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and

attorney's fees, and such other and further relief as the Court deems just and proper.

PARTIES

5. Plaintiff Shaun Tindal is an African American Male, a resident of the State of New York, Kings County.

6. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. At all times alleged herein, defendants NYPD P.O. REGINALD SMITH; NYPD L.T. DUSTIN EDWARDS; NYPD SGT CREER and NYPD P.O. JOHN/JANE DOES # 1-10, were New York City Police Officers employed with the 81st Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

8. At all times alleged herein, defendants NYC DOC WARDEN JOHN/JANE DOE # 1; SUPERVISOR C.O. JOHN/JANE DOE # 1-2; and C.O. JOHN DOES # 1-10 were New York City Correction Officers employed at OBCC, or other as yet unknown DOC assignment, who violated plaintiff's rights as described herein.

9. At all times alleged herein, WARDEN JOHN/JANE DOE # 1; and SUPERVISOR C.O. JOHN/JANE DOE # 1-2 were New York City Correction Officers responsible for the training and supervision of staff and detainees to ensure a safe environment, including

the enforcement of NYC DOC rules and regulations; the housing of pre-trial detainees and for establishing and/or enforcing the customs and practices with regard to preventing cruel and unusual punishment and inhumane conditions of confinement.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

11. On or about February 1, 2017, at and in the vicinity of 1941 Fulton Street, and Saratoga Avenue, Brooklyn, New York, police officers operating from the 81st Precinct, including upon information and belief, NYPD P.O. REGINALD SMITH, NYPD P.O. DUSTIN EDWARDS, and SGT CREER and NYPD P.O. John or Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

12. On February 1, 2017, at approximately 2:55 p.m., at and in the vicinity of 131 Amboy Street, Brooklyn, New York, defendants, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime defendants unlawfully arrested plaintiff.

13. Plaintiff was walking and defendant NYPD P.O. Reginald Smith, and one of NYPD P.O. JOHN DOES #1-10 in plain

clothes came out of unmarked car and did not identify themselves as police officers.

14. Defendant NYPD P.O. Reginald Smith, grabbed plaintiff and slammed him against a fence.

15. Defendant NYPD P.O. Reginald Smith then searched plaintiff and placed excessively tight handcuffs on plaintiff.

16. Defendants then placed plaintiff in the back of a police car.

17. Plaintiff was in pain and requested that the officers loosen the handcuffs, but his request was denied.

18. The defendants then took plaintiff to the 81st precinct where he was questioned.

19. During this time, in order to cover up their illegal actions, the defendant officers, pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes, including gun possession.

20. The Criminal Complaint signed by defendant NYPD Reginald Smith, states in sum and substance that he was informed by defendant NYPD LT DUSTIN EDWARDS, that plaintiff was in possession of a firearm.

21. Defendants knew that this statement was false.

22. Defendant LT Dustin Edwards, approved this false arrest, and NYPD SGT. CREER signed-off on this false arrest.

23.

24. Plaintiff was taken then taken to Rikers Island and was held there until February 7, 2017 where he was released on his own recognizance.

25. During the time plaintiff was on Rikers Island, plaintiff was a pretrial detainee assigned B&C Number 141-17-01058.

26. On or about February 1, 2017, C.O. John/Jane Does #1-10 housed plaintiff in OBCC.

27. While at OBCC, defendant's C.O. John/Jane Does #1-10 placed plaintiff in the intake area.

28. Plaintiff was in the intake area of OBCC from on or about February 1, 2017 to on or about February 4, 2017.

29. While in the intake area C.O. John/Jane Does #1-10 forced claimant to sleep on a dirty filthy floor with no bed, was not provided with the opportunity to take showers and was not allowed basic hygiene, including but not limited to brushing his teeth.

30. There was no lawful purpose for leaving plaintiff in an intake cell and forcing him to sleep on the floor, and denying him showers and basic hygiene for four days.

31. Leaving plaintiff in an intake cell and forcing him to sleep on the floor, and denying him showers and basic hygiene for four days was cruel and unusual punishment.

32. All charges against plaintiff were dismissed on February 23, 2017.

33. After the all charges were dismissed, defendants and other officers continued to harass plaintiff.

34. On or about May 5, 2017 at 11:00 P.M. in the vicinity of Sutter Avenue and Bradford Street, Brooklyn New York defendant NYPD P.O. Reginald Smith in the same unmarked car, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime defendants unlawfully stopped plaintiff and threatened to slam plaintiff to the ground.

35. On or about May 12, 2017 at approximately 2:00 AM, police officers in plainclothes without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime defendants unlawfully stopped plaintiff, pat frisked and got back in their unmarked car.

36. On or about June 28, 2017, at approximately 11:00 P.M. in the vicinity of Lavonia Avenue and Wyona Street, Brooklyn New York officers in plainclothes, without either

consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime defendants unlawfully stopped plaintiff, searched plaintiff, and then searched his bag.

37. The defendants made these false allegations, despite the fact that they had no evidence that plaintiff had committed a crime, to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

38. However, because there was no basis to arrest plaintiff, much less prosecute plaintiff, the Kings County District Attorney's Office declined to prosecute plaintiff.

39. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

40. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

41. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed

any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

42. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

43. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

44. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

45. Upon information and belief, the unlawful actions against plaintiff were also based on profiling.

46. The aforesaid events are not an isolated incident. Defendants City of New York, and Warden John/Jane Doe #1 have been aware (from lawsuits, notices of claim and complaints) that many of the DOC's officers are insufficiently

trained on the proper way to, interact with detainees, and how not to violate inmates'/detainees' civil rights.

47. Defendants City of New York and Warden John/Jane Doe #1, are further aware that such improper conduct and training has often resulted in a deprivation of civil rights.

48. Despite such notice, defendants City of New York, Warden John/Jane Doe #1, have failed to take corrective action.

49. This failure caused the officers in the present case to violate the plaintiff's civil rights.

50. Moreover, defendants City of New York, and Warden John/Jane Doe #1, were aware prior to the incident that the defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as officers.

51. Despite such notice, defendants City of New York and, Warden August have retained these officers, and failed to adequately train and supervise them.

52. At all times defendant City of New York by the DOC, and its agents, servants and/or employees, negligently, carelessly, and recklessly trained the individual defendants for the position of correction officers.

53. At all times defendant City of New York by the DOC, and its agents, servants and/or employees, negligently, carelessly, and recklessly supervised, controlled, managed,

maintained, and inspected the activities of the individual defendants.

54. At all times defendant City of New York by the DOC, and its agents, servants and/or employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

55. At all times defendant City of New York by the DOC, and its agents, servants and/or employees negligently, carelessly, and recklessly retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

56. The occurrence(s) and injuries sustained by plaintiff, were caused solely by, and as a result of the negligent, malicious, reckless, and/or intentional conduct of defendant City of New York, and the DOC, and its agents, servants and/or employees, as set forth above, without provocation on the part of the plaintiff contributing thereto, specifically, the reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained the individual defendants.

57. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

58. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

59. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

60. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

61. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

62. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

63. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

64. The NYPD defendants are liable to plaintiff for malicious prosecution because prior to any grand action, with intent, knowledge, and malice, the defendants initiated a malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

65. The NYPD defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

66. The NYPD defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

67. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

THIRD CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

68. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

69. Defendants unlawfully stopped and searched plaintiff without cause, a warrant, or consent.

70. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM**(UNREASONABLE FORCE)**

71. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

72. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

73. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

74. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

75. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant

to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FIFTH CLAIM

(FAILURE TO INTERVENE)

76. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

77. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

78. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

SIXTH CLAIM

(42 U.S.C. § 1983 CONSPIRACY)

79. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

80. The NYPD defendants are liable to plaintiff because they agreed to act in concert with each other, to inflict unconstitutional injuries; and committed overt acts done in furtherance of that goal causing damage to plaintiff.

SEVENTH CLAIM**EIGHTH AND FOURTEENTH AMENDEMENTS TO THE UNITED STATES
CONSTITUTION
CRUEL AND UNUSUAL PUNISHMENT**

81. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

82. The aforementioned abuse of plaintiff by the above named NYC DOC defendants, was undertaken intentionally, maliciously and sadistically as locking a human being in a cell without a bed, forcing him to sleep on a floor, denying him the opportunity to shower and brush his teeth, is inherently cruel and unusual.

83. These action taken under color of law, inflicted substantial pain and emotional and physical injuries on Plaintiff, and violated her right to be free from cruel and unusual punishment as guaranteed by the Eighth and Fourteenth Amendments of the United States Constitution.

84. Accordingly, defendants are liable to plaintiff for cruel and unusual punishment.

EIGHTH CLAIM**EIGHTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION****FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
CONSTITUTIONAL RIGHTS AND FAILURE TO TRAIN SUPERVISE EMPLOYEES**

85. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The City of New York has instituted policies and procedures to protect inmates from abuse, but as heretofore described, the supervisory defendants have through gross negligence, demonstrated deliberate indifference to inmates at OBCC, including plaintiff by failing or refusing to enforce the policies.

87. These defendants have allowed a culture to flourish at OBCC where abuse of inmates is tolerated, they have failed to adequately supervise officers including defendants Warden John/Jane Doe 1, and Supervisor C.O. John/Jane Does #1-2, and they failed to adequately train and or supervise other subordinate officers to ensure that the Constitutional rights of inmates in their care are protected.

88. The aforesaid conduct by the defendants violated plaintiff's rights under 42 U.S.C. §§ 1983 and the Eighth and Fourteenth Amendments to the United States Constitution.

NINTH CLAIM

(MONELL CLAIM NYPD)

89. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

90. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

91. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

92. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

93. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

94. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

95. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

96. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011, Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County,

while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

97. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

98. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

99. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

TENTH CLAIM**(MONELL CLAIM NY DOC)**

100. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

101. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

102. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

103. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

104. Further, defendant City of New York was aware prior to the incident that the individual defendants (in

continuation of its illegal custom, practice and/or policy) would commit the illegal acts described herein.

105. In addition, the following are municipal policies, practices and customs: (a) cruel and unusual punishment; (b) Denying pre-trial detainees beds, and hygiene; and (c) covering up misconduct.

106. WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

107. Compensatory damages in an amount to be determined by a jury;

108. Punitive damages in an amount to be determined by a jury;

109. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and

110. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

111. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
October 9, 2019

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiff
65 Broadway Suite 715
New York, New York 10006
212-430-6590
martin@amcmlaw.com
By:

A handwritten signature in cursive script, appearing to read "Martin E. Adams", written in black ink.

MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SHAUN TINDAL

Plaintiff,

VERIFICATION

Index No: _____

-against-

Date Filed: _____

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NYPD L.T. DUSTIN EDWARDS; NYPD SGT CREER; NYPD
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1; SUPERVISOR C.O. JOHN/JANE DOE # 1-2; and C.O.
JOHN DOES # 1-10; the individual defendant(s) sued
individually and in their official capacities,

Defendants.

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STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to practice law
in the State of New York, hereby affirms pursuant to the C.P.L.R. and
subscribing as true under the penalties of perjury as follows:

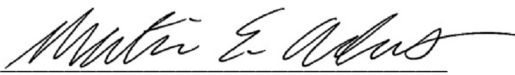
That the Affirmant is a member of the law firm Adams & Commissiong LLP,
the attorneys of record for the plaintiff in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to the
matters stated to be alleged upon information and belief, and that as to
those matters he believes them to be true.

That the reason why this verification is made by Affirmant instead of
the plaintiff is because the plaintiff does not reside within the County in
which the firm of Adams & Commissiong LLP maintain their office.

The grounds of Affirmant's belief as to all matters in the complaint
not stated to be upon his knowledge are based upon conversations with
plaintiff, and a review of records related to this action.

DATED: New York, New York
October 9, 2019



MARTIN E. ADAMS, ESQ